

Allahabad U.P. Gramin Bank v. State of U.P.

Allahabad High Court · Division Bench · 11 April 2016 · Writ-C No. 16164 of 2016 · **Disposed of; consider new connection after 4.4 and 4.8 compliance.**

HEADNOTE

Writ by a bank seeking a decision on a new-connection application disposed of by permitting compliance with clauses 4.4 and 4.8 of the 2005 Supply Code, after which the licensee shall consider the application in accordance with law expeditiously. Entitlement on the merits not decided.

FACTUAL SUMMARY

Allahabad U.P. Gramin Bank filed a writ petition in the Allahabad High Court seeking a decision by the second respondent on its pending application for a new electric connection. The State of Uttar Pradesh and two others were arrayed as respondents. The order does not record why the application had remained undecided, or any contest over occupancy, owner consent, site of supply, or arrears. A Division Bench of the Chief Justice and Yashwant Varma J took up the writ on 11 April 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — compliance then consideration

HOLDING

Where a consumer seeks a decision on an application for a new electric connection, the Court may dispose of the writ by permitting compliance with clauses 4.4 and 4.8 of the 2005 Supply Code, after which the licensee shall consider the application in accordance with law expeditiously. ¶ 1

HOLDING-UNIT · UP-2005::4.8

new connection — clause 4.8 compliance

HOLDING

Compliance with clause 4.8, together with clause 4.4, is the condition upon which the licensee is to consider a new-connection application in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A NEW ELECTRIC CONNECTION ON THE FACTS

Left to the second respondent after compliance with clauses 4.4 and 4.8 ¶ 1